



#21

SUPREME COURT OF THE STATE OF NEW YORK, COUNTY OF NEW YORK
INDIVIDUAL ASSIGNMENT PART [OR JUSTICE]

ESTUPINAN, ELIZABETH

IAS Part: **HON. ADAM SILVERA**

Plaintiff(s),

Index No.: 152563/2022

J.S.C.

- against -

DCM Track: Standard

Appearance no: 001

WALLACK NYC FAMILY LIMITED
 PARTNERSHIP et al

Defendant(s).

**PRELIMINARY CONFERENCE
 ORDER**

(202.8, 202.12 and 202.19 of the Uniform Rules)

APPEARANCES

Plaintiff(s): Siegel & Cooney LLP, by: Michael Rosner

Defendant(s): Merson + McCarthy by Robert T. Collier

It is hereby ORDERED that disclosure shall proceed as follows:

(1) **Insurance Coverage:** If not already provided, shall be furnished by Δ on or before 9/15/23(2) **Bill of Particulars:**

(a) Demand for a bill of particulars shall be served by _____ on or before _____.

(b) Bill of particulars shall be served by _____ on or before _____.

(c) A supplemental bill of particulars shall be served by _____ as to Items _____ on or before _____.

(3) **Medical Reports and Authorizations:**

Shall be served as follows: TT to respond to demand for A22
to the extent not done, by 9/15/23, (including response
to demand for radiological films)

(4) **Physical Examination:**(a) Examination of TT shall be held described w/i 30 days of TT's LBT, held w/i 45(b) A copy of the physician's report shall be furnished to plaintiff within 45 days of the examination.(5) **Depositions:** Depositions of ☐ Plaintiff(s) ☐ Defendant(s) ☒ All Parties shall be held

TT on 12/7/23. Δ Wallack NYC Family Partnership on 12/14/23,
Δ Wallack Management Co. Inc. on 12/15/23

(6) **Other Disclosure:**(a) All parties, on or before 9/15/23, shall exchange names and addresses of all eye witnesses and notice witnesses, statements of opposing parties, and photographs, or, if none, provide an affirmation to that effect.(b) Authorization for plaintiff's(s') employment records for the period TT to respond to demand for
employment A22 by 9/15/23 shall be furnished on or before _____.

(c) Demand for discovery and inspection shall be served by _____ on or before _____. The items sought shall be produced to the extent not objected to, and objections, if any, shall be stated on or before _____.

(d) Other [interrogatories, etc.] _____

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(7) End Date for All Disclosure:

8/5/24

(8) Impleader: Shall be completed on or before

w/in 45 days after QBTS

(9) Compliance Conference: Shall be held on

1/17/24

(10) Motions: Any dispositive motion(s) shall be made on or before

w/in 60 days after filing

(11) Note of Issue:

TAOF NOT shall file a note of issue/certificate of readiness on orbefore 8/5/24. A copy of this order, an affirmation stating that the terms of the order have been complied with, and affidavit of service of the affirmation and note of issue shall be served and filed with the note of issue on or before said date.

FAILURE TO COMPLY WITH ANY OF THESE DIRECTIVES MAY RESULT IN THE IMPOSITION OF COSTS OR SANCTIONS OR OTHER ACTION AUTHORIZED BY LAW. DATES SET FORTH HEREIN MAY NOT BE ADJOURNED EXCEPT WITH ADVANCE APPROVAL OF THE COURT.

SO ORDERED:

Dated:

8/3/23

J.S.C.
~~HON. RICHARD LATIN~~

HON. ADAM SILVERA

ADDITIONAL DIRECTIVES

J.S.C.

In addition to the directives set forth above, it is further ORDERED as follows:

Δ to respond to TT's Complaint Docketed 8/31/22
by 9/15/23.

SO ORDERED:

Dated:

8/3/23

J.S.C.
~~HON. RICHARD LATIN~~

HON. ADAM SILVERA

J.S.C.

TS-135 (Rev. 10/17)